Republic of the Philippines
Office of the President
NATIONAL COMMISSION ON INDIGENOUS PEOPLES
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COMMISSION EN BANC RESOLUTION NO. 08-073-2021
Series of 2021

A RESOLUTION CONDEMNING THE ACTS OF THE COMMUNIST PARTY OF THE PHILIPPINES-NEW PEOPLE'S ARMY-NATIONAL DEMOCRATIC FRONT (CPP-NPA-NDF) IN CREATING THEIR "IP PEOPLES ORGANIZATIONS" MISREPRESENTING THE TRUE INTERESTS AND SITUATIONS OF THE INDIGENOUS CULTURAL COMMUNITIES/INDIGENOUS PEOPLES (ICCs/IPs)

WHEREAS, Section 13 of Republic Act 8371, otherwise known as the Indigenous Peoples Rights Act of 1997 (IPRA) provides that the State recognizes the inherent right of the ICCs/IPs to self-governance and self-determination and respect the integrity of their values, practices, and institutions. Consequently, the State shall guarantee the right of ICCs/IPs to freely pursue their economic, social, and cultural development;

WHEREAS, Section 19 of the IPRA provides that the State shall recognize and respect the role of independent ICCs/IPs Organizations to enable the ICCs/IPs to pursue and protect their legitimate and collective interests and aspirations through peaceful and lawful means;

WHEREAS, the CPP-NPA-NDF created the National Peasant Commission (NPC) and territorial commissions such as Northern Luzon Commission (NLC), Southern Luzon Commission (SLC), Visayas Commission (VisCom), and Mindanao Commission (KOMMID) to establish absolute control of their party members and to oversee CTG programs relating to ICCs/IPs;

WHEREAS, the commissions mentioned operationalize their programs through two (2) Underground Mass Organization (UGMO) for the IP Sector namely the Cordillera Peoples Democratic Front (CPDF) for the Cordillera Region and Rebolusyonaryong Organisadong Lumad (ROL) for the Mindanao Region. The implementation is also done through their Open Front Organization, KATRIBU KAMMP or KATRIBU Kalipunan ng mga Mamamayang Minorya ng Pilipinas, which has eighteen (18) Regional/Local Chapters;

WHEREAS, these, plus other IPOs created by the CTGs, were established without the consent of the ICCs/IPs that they claim to represent, or were given by IP leaders they have installed without real authorities from their communities. These not only violate the IPRA but also customary laws. The objective of the CTG Front Organization/Network is to conduct Arouse, Organize, and Mobilize (AOM) activities to advance the CTG's Armed Struggle, which are contrary to the purpose of the ICCs/IPs Organizations;

WHEREAS, the CTG Front Organizations/Networks call for the abolition of the IPRA and the NCIP, and support the violent overthrow of the government. This has led to the commission of the following 17 Major Atrocities, as follows:

1. Supplanting the traditional leaders and replacing them with the revolutionary ones as the CPP-NPA-NDF (CNN) Central Task Force for the IPs;
2. Murdering almost a thousand of IP leaders from the 1980s to present just because they did not follow what the NPA wanted. The most glaring incidents were the Rano Massacre in

Davao del Sur and the murder of Mayor Jose Libayao in the presence of his family, community, and foreign donors in the Tribal Municipality of Talaingod, Davao del Norte and the killing of Cordillera's Father Conrado Balweg in his ancestral house;

3. Making the Ancestral Domains (ADs) or IP territories and lands as their CTGs guerilla base, CTGs guerilla zone, and battle ground that caught the ICCs/IPs in crossfire and put an end to the community's tranquility and peace in the last 40 years;
4. Collecting CTG's revolutionary taxes from the ICCs/IPs farm produce, livestock, sari-sari store, habal-habal transport, etc.;
5. Setting up of schools for elementary and secondary education in the different ADs in Mindanao, to radicalize the IP children through anti – government instructions, train child warriors, and by sending them to the NPA units for exposure;
6. Agitating and deceiving IP leaders and members with false promises, to go on "Bakwit" or fabricated displacements, from the ADs to the town centers or cities like Haran in Davao City and preventing them from going back to their ADs. Likewise, against their culture, they were deceived into bringing IP youth and students to join "Manilakbayan";
7. Enrolling IP youth leaders in the tertiary schools through their scholarship programs designed to develop cadres of the CPP-NPA-NDF. The scholarship requires them to participate in PADEPA and Basic Party Courses and recruitment to the UGMO and CPP party membership compromising their roles as future leaders of their respective communities;
8. Undermining the restorative nature of the Justice System, Conflict Resolution Institutions, and Peace Building Processes of the ICCs/IPs by making IP leaders heads of Organs of Political Power (OPP) Revolutionary Justice System (Kangaroo Court) and applying penalties for acts not in accordance with the CTG framework in manners contrary to kinship and traditional relations within the community;
9. Unjustly convicting members of the ICCs/IPs by the CTG's Kangaroo Court and meting penalties in three classifications of areas to serve: Confinement in a particular community for a period of time, brought by an NPA unit in their movement, and confinement in a food production area. These penalties and other forms of punishments as well as regulations (curfews) are calculated to subdue the community, weaken the authority of the traditional leaders, and corrupt the customary practices and culture of the IPs;
10. Subverting the name "Bagani", which means a protector of the ADs, by using it as a name of NPA units thus compromising the meaning of an esteemed and valued membership causing confusion and violative of cultural integrity;
11. Unlawful entry or intrusion inside ADs which are recognized by the government as private communal properties of the ICCs/IPs without FPIC in the conduct of community activity and organizing and introducing foreign ideology which is the exact opposite of the cultural values of the ICCs/IPs who are peace loving people;
12. Interfering with the right to suffrage of the ICCs/IPs by controlling through the selling of permits to campaign and to win, limiting the ICCs/IPs' interaction and consultation only to those political candidates that are favored by the CPP-NPA-NDF;
13. Extorting from legitimate businesses including energy, telecommunications, and agri-businesses as well as from the ICCs/IPs in their share of the proceeds from these businesses in their ADs. The CPP-NPA-NDF only fought for the ICCs/IPs rights if these companies do not pay them;
14. Destroying of private and government construction equipment by the CTGs in the ADs delay and even stopping developmental projects thereby preventing the completion of infrastructure needed for the delivery of goods and services to the communities;
15. Creating fake and controlled IP "Peoples Organizations" to advance the interest of the CPP-NPA-NDF, thereby creating disunity and infighting within the communities and corrupting the customary laws and practices;

16. Through the International Solidarity Works (ISW) program of the CPP-NPA-NDF, fabricating and misleading ICCs/IPs issues raised and reported by IPs acting without authority from their communities, to the international fora, using the US Lakbayan and the UN system, including the UN Rapporteur of IP concerns, to portray the Philippine government as abusers of the rights of ICCs/IP, and to siphon funds for their terrorist activities; and
17. On top of the exploitation of the IP youth in their political programs, committing abuses through sexual molestation, forced labor, poor living conditions, insufficient nourishment, and lack of medical treatment.

NOW, THEREFORE, BE IT RESOLVED, as it is hereby **RESOLVED,** that the National Commission on Indigenous Peoples condemns the acts of the CTGs especially those against ICCs/IPs and endorses the attached initial data and information of said killings, and urges:

1. The members of the Senate and House of Representatives, and the Judiciary, to review the laws and processes, within their mandates, on the aforementioned issues, to make them more responsive in protecting the rights of the ICCs/IPs;
2. The Securities and Exchange Commission (SEC), Cooperative Development Authority (CDA), Department of Labor and Employment (DOLE), Department of Foreign Affairs (DFA), Department of Justice (DOJ), Commission on Human Rights (CHR), Department of Interior and Local Government (DILG), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), National Intelligence Coordinating Agency (NICA), and other related branches of government to conduct a separate or joint investigation on the foregoing CTG atrocities against the ICCs/IPs;
3. The Securities and Exchange Commission (SEC), Cooperative Development Authority (CDA), Department of Labor and Employment (DOLE), Department of Foreign Affairs (DFA), The Department of Justice (DOJ), Commission on Human Rights (CHR), Department of Interior and Local Government (DILG), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), National Intelligence Coordinating Agency (NICA), and other related government agencies to undertake a joint legal offensive to include violations under the Anti-Terrorism Law, law enforcement, and joint information operations through the National Task Force to End Local Communist Armed Conflict (NTF-ELCAC) Framework; and
4. The filing of appropriate cases and actions for violations of the International Humanitarian Law and Anti-Terrorism Law and other appropriate laws not only in the Philippine legal framework, but also in other jurisdictions, including the international fora.

RESOLVED FURTHER that the Regional and Provincial Offices and Community Service Centers shall:

1. Encourage the IPMRs to sponsor discussion and possible adoption of this Commission En Banc (CEB) Resolution by their respective Local Legislative Councils and Policy Making Bodies; and
2. Conduct information education campaign/consultation (IEC) activities on the abuses of the rights of the ICCs/IPs by the CPP – NPA – NDF and this CEB Resolution.

RESOLVED FINALLY, that the Office of the Executive Director (OED) shall ensure dissemination of this Resolution to all other Government Offices and other concerned stakeholders. The Office of Empowerment and Human Rights (OEHR) is hereby directed to monitor compliance with the above directives.

APPROVED this 20th day of October 2021 in Quezon City, Philippines.

GASPAR A. CAYAT
Commissioner, CAR and Region 1

NORBERTO M. NAVARRO
Commissioner, Region 2

ROLANDO M. RIVERA
Commissioner, Region 3
and Rest of Luzon

JEORGE M. LARGADO
Commissioner, Island Groups
and Rest of Visayas

PINKY GRACE P. PAREJA
Commissioner, Northern and
Western Mindanao

JENNIFER PIA-SIBUG-LAS
Commissioner, Central Mindanao

ALLEN A. CAPUYAN
Chairperson
Commissioner, Southern
and Eastern Mindanao

ATTESTATION

I attest that this Resolution was approved by the Commission during its Regular Session on the date as above stated.

ROGELIO FRANCISCO M. BANTAYAN, JR.
Executive Director and Head Secretariat